

COMPETITION AND CONSUMER ACT 2010

CONSENT TO WITHDRAWAL OF SECTION 87B UNDERTAKING

BACKGROUND

1. On 4 September 2013, the Australian Competition and Consumer Commission (ACCC) accepted an undertaking given by Westfield Management Limited (**Westfield**), RE1 Limited and RE2 Limited (together, **WRT**) pursuant to section 87B of the *Competition and Consumer Act 2010* (the **Act**) (the **Undertaking**) in relation to Westfield, WRT and/or Westfield Management Limited, in its capacity as the trustee of the WestArt Trust's, proposed acquisition of the Karrinyup Shopping Centre (the **Proposed Acquisition**, as further defined in, and as contemplated by, the Undertaking).
2. On 10 September 2013, Westfield and WRT advised that, rather than acquiring a further interest in the Karrinyup Shopping Centre, they had sold their existing interests in Karrinyup Shopping Centre to an entity associated with UniSuper.
3. On 19 September 2013, Westfield and WRT advised that on 13 September they had completed the sale of their units in the Karrinyup Shopping Centre Trust (**KSC Trust**) to an entity associated with UniSuper and no longer have any interests in the KSC Trust or the Karrinyup Shopping Centre.
4. On the basis that the Proposed Acquisition is no longer proceeding, Westfield and WRT sought the ACCC's consent to the withdrawal of the Undertaking pursuant to s.87B(2) of the Act.

WITHDRAWAL

5. In accordance with s.87B(2) of the Act, the Undertaking is withdrawn in its entirety, with effect on and from the date on which the ACCC gives its consent to the withdrawal.

Executed by Westfield Management Limited (ACN 001 670 579) pursuant to section 127(1) of the *Corporations Act 2001* by:

Signature of director

PETER KENNETH ALLEN

Name of director (print)

Date: 23.10.13

Signature of company secretary

SIMON JULIAN TUXEN

Name of company secretary (print)

Date: 22.10.13

Executed by RE1 Limited (ACN 145 743 862) pursuant to section 127(1) of the *Corporations Act 2001* by:

Signature of director

Domenic Panaccio

Name of director (print)

Date: 21.10.13

Signature of a company secretary

Katherine Grace

Name of company secretary (print)

Date: 21.10.13

Executed by RE2 Limited (ACN 145 744 065) pursuant to section 127(1) of the *Corporations Act 2001* by:

Signature of director

Domenic Panaccio

Name of director (print)

Date: 21.10.13

Signature of a company secretary

Katherine Grace

Name of company secretary (print)

Date: 21.10.13

CONSENT given by the AUSTRALIAN COMEPTITION AND CONSUMER COMMISSION pursuant to section 87B(2) of the *Competition and Consumer Act 2010* (Cth) on:

Signed on behalf of the ACCC by:

Chairman

Date

30/10/13